

STATE OF NEW YORK SUPREME COURT
COUNTY OF NEW YORK

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IAN REISNER,

Plaintiff,

Index No.:

-against-

MAUREEN LUPO,

Defendant.

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**AFFIRMATION OF MICHAEL RUGGIERO IN SUPPORT OF IMMEDIATE
EMERGENT RELIEF REQUESTING AN OTSC FOR DECLATORY RELIEF AND
RESTRAINING ORDER AGAINST MAUREEN LUPO BASED ON A FRAUDULENT
LEASE, ILLEGAL VIOLATIONS AND COVERSON OF FUNFDS AT 510W 42ND
STREET**

STATE OF NEW YORK
COUNTY OF NEW YORK

I, Michael Ruggiero, affirm under penalties of perjury under the laws of the State of New York that the following is true and correct:

1. I am the President and Chief Operating Officer of Beau Dietl & Associates, a private investigation and security consulting firm. I am a former NYPD detective before I joined Beau Dietl and Associates (www.investigations.com) in 2016.
2. Our firm has been in the business of corporate and private investigation for over 40 years, with thousands of successful cases, deep relationships with law enforcement and an interdisciplinary blend of investigative methodologies.
3. This affirmation summarizes my observations, findings, and related actions during the investigation conducted at 510W 42nd Street in New York City, New York (the "Property"), following events of concern between June and December 2024.

4. I was directly involved in overseeing investigative efforts at the Property in response to reports of unauthorized activities, safety concerns, and violent incidents.

5. On December 16, 2024, My team, led by our Chief Investigator Michael Ciravolo, commenced an investigation into a shooting that occurred at the Property on December 9, 2024, at approximately 12:45 AM.

6. Michael Kravarik, who has worked for Ian Reisner for the past seven years, confirmed with Mr. Ciravolo that Mr. Reisner acquired the grand lease for the property in March 2024 for a term of 35 years. (see Exhibit 1 – Investigation Report).

7. Mr. Kravarik revealed that the nightclub's interior security cameras had not been operational for over a year because prior tenants had removed the DVRs. Furthermore, Ms. Lupo had installed her own cameras and removed them before the incident, further obstructing evidence collection (see *id.*).

8. Mr. Kravarik also stated that Ms. Lupo has a history of associating with individuals of questionable character and that she had previously threatened to burn down the club and hotel if asked to leave (see *id.*).

9. We conducted an on-site inspection of the nightclub, which revealed significant security lapses. This included a lack of operational cameras and the absence of proper security protocols.

10. Gordon Lustica, the Chief engineer of the Property for more than 20 years, indicated that Ms. Lupo exerted control over certain spaces within the Property, including a private office with a door camera, which she removed to evade surveillance (see *id.*).

11. Additional findings indicated that Ms. Lupo allowed dangerous activities to occur, including gambling and the presence of firearms at events.

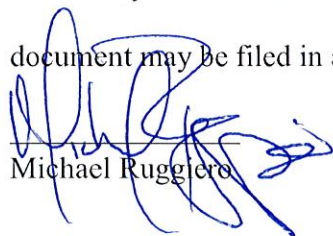
12. Specifically, the December 9 shooting was linked to a dice game organized in the nightclub's back room, known as the "black box." During this game, Ms. Lupo's boyfriend, Kashawn Joseph, was injured by a gunshot wound. The initial mishandling of the crime scene by authorities further compromised the investigation (see *id.*).

13. Jeremy Broderick, one of the general managers at the Property, stated that Ms. Lupo does not have a lease for the nightclub space. He also reported that one of Ms. Lupo's associates pointed a gun at Mr. Reisner and made a threatening remark, referencing a violent act against a family member of Mr. Reisner (see *id.*).

14. I have attached copies of the investigative report authored by our Chief Investigator Michael Ciravolo and supplementary photographs.

15. These materials provide comprehensive documentation of the risks and damages caused by Ms. Lupo's unauthorized activities.

I affirm this 7th day of Jan, 2025, under the penalties of perjury under the laws of New York, which may include a fine or imprisonment, that the foregoing is true, and I understand that this document may be filed in an action or proceeding in a court of law.


Michael Ruggiero